

Thistle Architecture

PLANNING RESEARCH AND RISK ANALYSIS

Luton Borough Council

16 Claremont Road, Luton, Bedfordshire, LU4 8LZ

Project TH00212

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This document sets out the planning policy framework and the site specific risks for the proposed conversion. It informs the design strategy and the eventual Design and Access Statement. It is an internal research document and is not a planning submission.

1. Executive Summary (Risk Dashboard)

The site carries a low policy risk for a six person small HMO but a higher risk for the two stretch ambitions, namely a seven or eight person large HMO and the conversion of the rear outbuilding into a separate dwelling. The dashboard below rates each issue.

Issue	Risk	Summary
Article 4 direction (change of use)	LOW	Luton has no HMO Article 4 direction anywhere in the borough. Change of use from C3 to C4 (up to six persons) is permitted development.
Conservation area and heritage	LOW	The site is not within a conservation area and is not listed. No heritage control applies to the proposed rear dormer.
HMO density and sandwich rule	LOW	Luton has no numeric HMO concentration threshold and no HMO SPD. Concentration is a qualitative character consideration only.
Family housing protection (seven plus route)	HIGH	For a seven or eight person sui generis HMO, Luton consistently refuses the loss of a family dwelling under LLP1 and LLP15. This does not apply to the six person C4 route.
Highways and parking	LOW	Maximum only standards. A converted terrace HMO is treated as car free by standard. Highways raised no objection in any of the eight local decisions reviewed.
Amenity and waste standards	MEDIUM	No fixed HMO amenity figure. The rear garden must serve both the HMO and the proposed outbuilding unit. Deliverable with a clear amenity and refuse strategy.
Rear dormer	LOW	Rear and side dormers are routinely permitted development in Luton

		within the Class B volume limits, as confirmed by a near identical local certificate.
Outbuilding to self contained one bed unit	HIGH	Creates a new dwelling assessed under LLP15 and LLP25. No supporting precedent in the supplied evidence and a comparable garden unit refusal was upheld at appeal.
Local decision precedent	MEDIUM	Luton grants C4 conversions and dormers as permitted development but refuses seven plus conversions of family dwellings unless an established lawful HMO use exists.
Recent applications nearby	LOW	The dominant local route is the lawful development certificate for a six person C4 HMO, which sidesteps discretionary refusal.

2. Site Context Recap

The site comprises 16 Claremont Road, a mid terrace dwelling in the Beech Hill ward of north west Luton, off the Dunstable Road corridor. The property is currently in use as a single family dwellinghouse (Use Class C3) arranged as three bedrooms with three reception rooms. The local planning authority is Luton Borough Council.

The proposal is to convert the dwelling into a six bedroom HMO by means of a rear dormer, with a client aspiration to increase to seven and to test eight bedrooms. Separately, the rear outbuilding is proposed for conversion into a one bedroom self contained unit with its own side access. The occupancy target for the space standards research is seven persons.

3. Local Plan Policy Framework

The adopted development plan is the Luton Local Plan 2011 to 2031, adopted on 7 November 2017. A new Local Plan running to around 2040 is in early preparation, with a Regulation 18 draft expected during 2026. The emerging plan carries negligible material weight at present because no draft policies or HMO thresholds have been published.

- **LLP1 Presumption in Favour of Sustainable Development** — The overarching policy applied to every HMO decision alongside the housing and design policies.
- **LLP2 Spatial Development Strategy** — Sets the borough wide framework for growth and change of use.
- **LLP15 Housing Provision** — Supports housing delivery and is used, with LLP1, to resist the loss of family sized dwellings to HMO use.
- **LLP16 Affordable Housing** — Affordable housing is required on a net gain of eleven or more dwellings, so it is not triggered by this scheme.
- **LLP17 Houses in Multiple Occupation** — The key HMO policy, a qualitative criteria based test covering character, standards and amenity.
- **LLP19 Extensions to Dwellings and Annexes** — Governs the rear dormer. Part C excludes self contained units from the annexe route.
- **LLP25 High Quality Design** — The main design, character and residential amenity policy, cross referring to the amenity standards in Appendix 6.
- **LLP31 Sustainable Transport Strategy** — Applied with LLP32 to access and transport matters.
- **LLP32 Parking** — Residential parking is assessed against maximum standards in Appendix 2, with cycle storage required.

4. HMO Specific Policy Analysis

- **No HMO SPD.** Luton has not adopted an HMO Supplementary Planning Document. HMOs are controlled solely by Local Plan Policy LLP17.
- **LLP17 criteria.** LLP17 permits the creation of an HMO provided that (i) the proposal, or its cumulative impact with other similar proposals, would not adversely affect the character of the area; (ii) the units conform with adopted licensing and amenity standards and with design policy LLP25; and (iii) appropriate outdoor amenity space, bin storage and parking are provided.
- **No density threshold.** Luton has no numeric concentration threshold, no percentage rule, no radius test and no sandwich rule. Concentration is judged qualitatively under LLP17(i). The often quoted figure of ten per cent within one hundred metres is Bristol policy and does not apply in Luton.
- **Family housing.** There is no dedicated policy protecting family housing. In practice, Luton refuses the loss of four plus bedroom dwellings to sui generis HMO use under LLP1 and LLP15, relying on the Strategic Housing Market Assessment (a need for 2,590 four plus bedroom dwellings against roughly 333 to 402 delivered between 2011 and 2019) and, from early 2025, on the shortfall in the five year housing land supply (recorded at 3.36 to 3.6 years). The evidence needed to overcome this is either an established lawful HMO use on the site or an overriding justification.
- **C4 versus sui generis.** A small HMO of three to six unrelated persons is Use Class C4 and the change from C3 is permitted development in Luton. A large HMO of seven or more persons is sui generis and always requires planning permission, assessed under LLP17.

5. Article 4 Direction Analysis

The site is not within any Article 4 direction that removes HMO permitted development rights, because no such direction exists in Luton. The council operates three modern Article 4 directions, at Butterfield Green and Capability Green (in force 1 August 2022) and Luton Town Centre and surrounds (in force 6 October 2023). All three remove Class MA rights only, that is the change from commercial Class E to residential C3. None removes the C3 to C4 change of use.

The consequence is that the change of use from a dwellinghouse to a six person small HMO is permitted development at 16 Claremont Road and can be confirmed by a Lawful Development Certificate. A move to seven or more persons is sui generis and requires a full planning application. The rear dormer and the outbuilding conversion require their own consents regardless of the Article 4 position.

6. Conservation Area, Heritage and Design

The site is not within a conservation area. Luton has five conservation areas, all in central and eastern Luton, none of which covers the Beech Hill area. The property is not statutorily listed and is not locally listed, and there are no listed buildings on Claremont Road. The Claremont Buildings entry that appears in searches is in Newcastle upon Tyne and is not relevant. The nearest listed buildings, Bury Park United Reformed Church and 127 Dunstable Road, are not adjacent and would not constrain a rear alteration. The rear dormer is therefore assessed on ordinary design and amenity policy under LLP19 and LLP25, not on heritage grounds.

7. HMO Density Assessment for this Site

Luton applies no numeric HMO density threshold, so density is not a quantitative test at this site. Concentration is relevant only as a qualitative character consideration under LLP17(i), and only where a full planning application is required. An HMO Checker report (reference 2940) has been commissioned for the property. The specific figures for licensed HMOs, total residential properties and the percentage within the assessment radius were not extractable at the time of writing and are to be confirmed from that report. Because no numeric threshold exists, a high recorded concentration would not by itself trigger a refusal, although it would be weighed in the character assessment for any sui generis application.

Density position: not a numeric fail. No adopted threshold applies. HMO Checker report 2940 figures to be confirmed by the client and treated as informative only.

8. Recent Application Trends Nearby

The table below sets out comparable HMO decisions in Luton, drawn from the supplied case officer reports and the council portal. The clear pattern is that six person C4 conversions proceed through the lawful development certificate route, while seven and eight person sui generis conversions of family dwellings are refused.

Reference	Address	Proposal	Outcome	Key reason
26/00274/LAWP	5 Shaftsbury Road, LU4 8AL	Rear dormer and rooflights, C3 to four person C4 HMO	Lawful	Dormer and C4 confirmed permitted development
22/01291/LAWP	287 Dunstable Road, LU4 8BS	C3 to six person C4 HMO	Lawful	C4 conversion is permitted development
23/01195/FUL	39 Hazelbury Crescent, LU1 1JU	Six person C4 to seven person sui generis plus rear dormer	Approved	Established lawful HMO baseline; occupancy capped at seven
21/01127/COU	24 Mansfield Road, LU4 8NA	C3 to seven person sui generis HMO	Refused	Loss of family dwelling; intensification
23/00538/COU	11 Rockley Road, LU1 5RW	C3 to eight person sui generis HMO	Refused	Loss of family dwelling; neighbour amenity
24/00794/FUL	23 Downs Road, LU1 1QP	C3 to eight person sui generis HMO plus rooflights	Refused	Loss of dwelling; inadequate HMO standards detail
24/01257/COU	220 Biscot Road, LU3 1AY	C3 to eight person sui generis HMO	Refused	Loss of dwelling; undersized rooms; amenity

The recurring refusal reasons are the loss of a family dwelling (LLP1 and LLP15) and material intensification harming neighbour amenity (LLP17 and LLP25). The recurring approval factors are staying within permitted development for the C4 and the dormer, and, where full permission is needed, an established lawful HMO use on the site.

9. Local Decision Pattern Analysis

The user supplied eight Luton case officer reports, which are delegated decision reports rather than Planning Inspectorate appeal decisions. They are analysed here as local decision precedent. Two dismissed appeals are cited within them (references APP/B0230/W/21/3286040 and APP/B0230/C/24/3354644), which Luton reuses to support intensification refusals.

Refused decisions

Reference	Site	Year	Reasoning summary
21/01127/COU	24 Mansfield Road	2021	Seven person conversion of a terrace refused for loss of a family dwelling and intensification harming character and neighbour amenity.
23/00538/COU	11 Rockley Road	2023	Eight person conversion refused on principle and neighbour amenity despite an internally compliant layout; a dismissed appeal was cited.
24/00794/FUL	23 Downs Road	2024	Eight person conversion refused for loss of a family dwelling and for inadequate detail on HMO

			licensing and living standards.
24/01257/COU	220 Biscot Road	2025	Eight person conversion refused for loss of a dwelling and for an undersized 6.8 sqm room below the national standard; character was not a reason on this mixed street.

The dominant pattern is a twin refusal of loss of a four plus bedroom family dwelling under LLP1 and LLP15, paired with intensification harming neighbour amenity under LLP17 and LLP25. The six person C4 fall back is acknowledged in each case but given little weight, because seven plus persons is where the material differences between a dwelling and an HMO emerge.

Approved decisions

Reference	Site	Year	Reasoning summary
22/01291/LAWP	287 Dunstable Road	2022	Six person C4 confirmed lawful as permitted development; the application was downgraded from a full application to a certificate to avoid the loss of dwelling objection.
26/00274/LAWP	5 Shaftsbury Road	2026	Rear and side dormer with rooflights plus a four person C4 confirmed lawful; the dormer at 25.2 cubic metres sat below the forty cubic metre terrace threshold.
23/01195/FUL	39 Hazelbury Crescent	2024	Six to seven person sui generis granted because a lawful licensed C4 HMO had existed since 2016, removing the loss objection; conditioned to a maximum of seven residents and a rear bin store.

The approvals confirm two safe routes. The first is to stay within permitted development for the C4 conversion and the rear dormer, which is lawful and not subject to discretion. The second, for any increase to seven persons, is to establish a lawful C4 HMO use first and then apply for the additional resident against that baseline, as at 39 Hazelbury Crescent. None of the eight reports addresses an outbuilding conversion, so that element is not supported by this evidence.

10. Site Specific Risks

1. Loss of a family dwelling on the sui generis route. The property is a family sized dwelling. Luton consistently refuses the change to a seven or eight person HMO under LLP1 and LLP15, reinforced by the housing land supply shortfall. Mitigation: deliver the six person C4 HMO first under a certificate to establish a lawful HMO use, then seek the seventh bedroom as sui generis on the established baseline basis, following the 39 Hazelbury Crescent model.

2. Outbuilding conversion to a separate dwelling. The proposed one bedroom self contained unit creates a new planning unit judged under LLP15 and LLP25, not the annexe route, because LLP19 Part C excludes self contained units. A comparable garden unit was refused and dismissed at appeal. Mitigation: decide early between a genuine ancillary annexe with a functional link to the house and no independent letting, or a policy

compliant new dwelling with independent access, parking within the maximum, private amenity and no overlooking. Pre application advice is recommended for this element.

3. Undersized rooms on a full application. Luton refused a room of 6.8 sqm at 220 Biscot Road as below the national described space standard of 7.5 sqm for a single bedroom. Mitigation: size single bedrooms to at least 7.5 sqm and doubles to at least 11.5 sqm for any full application, exceeding the 6.51 sqm HMO licensing floor, and submit a full room schedule.

4. Rear dormer exceeding permitted development. A dormer on the principal roof slope, or one that exceeds the forty cubic metre terrace volume allowance, would fall outside permitted development. Mitigation: keep the dormer to the rear and side roof slopes, within the volume allowance, set back from the eaves, with obscured side glazing and matching materials, mirroring the 5 Shaftsbury Road certificate.

5. Neighbour amenity and intensification. Intensification from unrelated occupants is a repeated refusal reason. Mitigation: provide sound insulation to BS8233 2014, a management plan, and arrange rooms and openings away from neighbouring windows, as conditioned at 39 Hazelbury Crescent.

6. Division of rear garden amenity. Converting the outbuilding consumes rear garden that would otherwise serve the HMO shared amenity. Mitigation: demonstrate retained shared amenity for the HMO and Appendix 6 compliant private or communal amenity for the new unit.

7. Refuse storage on a terraced street. Officers scrutinise bin storage and presentation on terraces and condition rear stores. Mitigation: provide a dedicated screened rear bin store with a clear presentation route and confirm that containers do not stand permanently on the footway.

8. Parking perception. The property has no off street parking, although the standards impose no minimum. Mitigation: submit a Transport Statement and on street parking survey, adopt a car free and cycle led approach, and confirm the controlled parking zone status against the traffic order.

9. HMO licensing evidence gap. At 23 Downs Road a lack of licensing and amenity detail was itself a refusal reason. Mitigation: submit a full space standards schedule and licensing compliance with any application.

11. Recommendations and Mitigation Strategy

1. Phase the scheme. Deliver Stage 1 as a six person C4 HMO with a compliant rear dormer through a Lawful Development Certificate. This avoids the loss of dwelling refusal entirely and is the lowest risk route to a functioning HMO.

2. For any increase to seven persons, deliver Stage 2 only after the C4 HMO is lawful, licensed and operating, and apply for the additional resident as sui generis on the established baseline basis, accepting an occupancy cap condition. This follows the only local approval at this level.

3. Treat the outbuilding as the primary planning risk. Decide between a genuine ancillary annexe with a functional link, or a full planning new dwelling that is policy compliant on access, parking, amenity and overlooking. Do not present a self contained unit as an annexe.

4. Size all bedrooms to the national described space standard of 7.5 sqm for a single and 11.5 sqm for a double on any full application, exceeding the 6.51 sqm licensing floor.

5. Provide a clear amenity and waste strategy, retaining demonstrable shared garden amenity for the HMO, a screened rear bin store, and Appendix 6 compliant amenity for the new unit.

6. Submit a Transport Statement and on street parking survey, adopt a car free and cycle led approach, and confirm the controlled parking zone status.

7. Accompany any application with a full HMO space standards schedule and evidence of licensing compliance.

Pre application advice: recommended for the outbuilding unit and for any move to a seven plus sui generis HMO. It is optional for the six person C4 dormer route, which is low risk and can be confirmed by certificate.

Documents to accompany a full application: Design and Access Statement, HMO room and space standards schedule, Transport Statement and parking survey, Refuse and Recycling Strategy, and a management plan. A Heritage Impact Assessment is not required because the site carries no heritage designation.

12. Sources and References

Local Plan and policy

- Luton Local Plan 2011 to 2031 (adopted November 2017): luton.gov.uk/planning-building-control/planning/luton-local-plan/local-plan-2011-2031 — accessed 08-07-2026
- Luton HMO Standards (Private Sector Housing Enforcement): luton.gov.uk/housing/private-tenants-homeowners-landlords/landlords/mandatory-house-multiple-occupation-hmo-licensing/hmo-standards — accessed 08-07-2026
- Luton Supplementary Planning Documents list: luton.gov.uk/planning-building-control/planning/planning-policy/supplementary-planning-documents — accessed 08-07-2026

Article 4 and conservation

- Current Article 4 directions: luton.gov.uk/planning-building-control/planning/article-4-directions/current-article-4-directions — accessed 08-07-2026
- Conservation areas: luton.gov.uk/planning-building-control/planning/conservation-design-natural-environment/conservation-areas — accessed 08-07-2026

Local decisions (supplied case officer reports)

- 21/01127/COU 24 Mansfield Road; 23/00538/COU 11 Rockley Road; 24/00794/FUL 23 Downs Road; 24/01257/COU 220 Biscot Road; 22/01291/LAWP 287 Dunstable Road; 26/00274/LAWP 5 Shaftsbury Road; 23/01195/FUL 39 Hazelbury Crescent; 23/00742/AMEND 9 Denbigh Road (supplied by the user in 4_RESEARCH/Appeals) — accessed 08-07-2026
- Cited within the reports: appeal APP/B0230/W/21/3286040 and enforcement appeal APP/B0230/C/24/3354644 — accessed 08-07-2026

Council planning portal and other

- Luton planning portal (Idox): publicaccess.luton.gov.uk — accessed 08-07-2026
- HMO Checker report 2940: app.hmochecker.co.uk/report?reportData=2940 — accessed 08-07-2026
- Ward and postcode data: crystalroof.co.uk/report/postcode/LU48LZ/overview — accessed 08-07-2026

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Research compiled by Thistle Architecture/KT from official local authority and Planning Inspectorate documentation.